

CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT

ENTERED INTO BETWEEN

Chipkins Puratos (Pty) Ltd

REGISTRATION NO 1993/003106/07

("Party A")

AND

GARLOLOGIX (Pty) Ltd

REGISTRATION NO: 2022/615743/07

("Party B")

1. INTRODUCTION

- 1.1 Each party may disclose Confidential Information (as "Disclosing Party") to the other party (as "Receiving Party"). The obligations in this agreement apply equally to both parties in their respective roles.
- 1.2 For the purposes of this agreement, the "Disclosing Party" means the party disclosing Confidential Information and the "Receiving Party" means the party receiving such information. Both Party A and Party B may act in either capacity.
- 1.3 "effective date" means the date upon which this agreement has been signed by both parties.
- 1.4 "the Business" means all aspects of the businesses operated by each of the parties and/or any business conducted by its subsidiaries, associated companies and/or divisions ("the affiliates"), including, without limitation, the business of manufacturing, processing, marketing, selling and distributing consumer products, foodstuffs and related goods and services in respect of both parties.

2. RECITALS

- 2.1 Each party agrees that it may disclose to the other party certain Confidential Information, on condition that both parties comply with the terms of this agreement.
- 2.2 Each party understands that the other party has or may disclose information relating to certain information that has been or may be exchanged during the course of business, which to the extent previously, presently, or subsequently disclosed is hereinafter referred to as "Confidential Information" of the Disclosing Party. This shall apply to the scope of work defined in section 4 of this agreement.
- 2.3 This agreement shall apply to the parties for a period of two (2) years from the effective date unless the Confidential Information in question is governed by applicable laws pertaining to prescription concerning its right to protection.

3. SCOPE OF CONFIDENTIAL INFORMATION

- 3.1 "Confidential Information" means any information (including personal information defined by the Protection of Personal Information Act 4 of 2013 hereafter referred to as POPIA), electronic data and/or documents relating to the Protectable Interests which are not readily available to a competitor of the parties in the ordinary and regular course of business, and all personal information, as defined by Protection of Personal Information Act, 4 of 2013 (POPI); and
- 3.2 This agreement extends to "Protectable Interests" which is taken to mean each party's goodwill, its trade secrets, its trade connections, its confidential information and its knowledge and know-how including information, documents and/or data relating to the names, contact details, product ranges, pricing and discounts of any of the suppliers of products and services to the Business; the names, contact details, product or service specifications (including

product specifications, recipes, product formulations, new product development concepts and/or ideas developed for customers or other parties; manufacturing processes and/or techniques), particular requirements and preferences of existing or prospective clients, as well as any discounts given to clients; agreements with clients, business associates, principals or suppliers of the Business and the terms thereof; existing or planned distribution, marketing activities and sales strategies; the financial structure, details, performance, accounting records and/or operating results of the Business; technologies, technological know-how and information systems utilised by the Business.

3.3 All confidential information shall remain the property of the Disclosing Party.

3.4 No part of the scope of work shall be sub-contracted by the Receiving part pursuant of the work assignment without the express permission of the Disclosing Party.

3.5 This agreement shall be governed by and construed in accordance with the laws of South Africa.

3.6 This agreement is the entire agreement between the parties pertaining to non-disclosure of confidential information and supersedes all earlier and simultaneous agreements in this context and regarding the subject matter.

4. OPERATIVE PROVISIONS

4.1 In consideration of the mutual disclosure of Confidential Information, each party (when acting as Receiving Party) hereby agrees:

- 4.1.1 to use the Confidential Information only for the Permitted Purpose ("Permitted Purpose" means the use of confidential information in relation to the scope of work defined in Section 4);
- 4.1.2 to take appropriate security measures and keep the Confidential Information in such a way so as to prevent its unauthorised disclosure;
- 4.1.3 to hold Confidential Information in strict confidence and to take all reasonable precautionary measures to protect and safeguard such Confidential Information (including, without limitation, all precautions the Receiving Party employs with respect to its own confidential materials);
- 4.1.4 not to disclose any such Confidential Information or any information derived therefrom to any third person unless required by law and if so required to inform the recipient in writing of such intention to do so prior to the disclosure of any Confidential Information;
- 4.1.5 not to use, or allow the use of Confidential Information within its business or by any third party unless agreed with in writing by the Disclosing Party;
- 4.1.6 to take all practical steps, both before and after disclosure, to impress upon its Staff who are given access to confidential information the confidential nature thereof;
- 4.1.7 to at any time upon written request by the Disclosing Party to return, destroy or delete (in such a manner that it cannot be recovered) all Confidential Information in its possession or control save for Confidential Information which is automatically saved on the Receiving Party's Information Technology archiving systems which will be subject to an ongoing obligation by the Receiving Party to maintain the confidentiality of same; and
- 4.1.8 The Disclosing Party recognises that in connection with the scope of work it may be necessary for the Receiving Party to conduct certain tests on the materials of the

Disclosing Party. In such a case, the Receiving Party agrees that it will only make or have made those tests which are ordinary and necessary for the services being considered and, in any event, the Receiving Party agrees not to reverse engineer, make or have made any chemical analysis of the materials of the Disclosing Party without the prior consent in writing of the Disclosing Party. Additionally, the Receiving Party agrees that any materials supplied to it by the Disclosing Party for testing or evaluation shall either be returned or destroyed, as the Disclosing Party directs, following completion of such testing or evaluation;

4.1.9 Where the scope of work between the parties, places either party within the definition of an "operator" as defined by POPIA, this agreement shall continue to be of force and effect for as long as the "operator" remains in possession of any Personal Information of the Data Subjects, regardless of any expiration or termination of this or any other related contracts related to and connected with this agreement; and

4.1.10 Where POPIA compliance is relevant, the signatories to this agreement confirm full compliance with the provisions of the Act.

5. BREACH OF THIS AGREEMENT

In the event of breach or threatened breach or intended breach of this agreement by either party, in addition to any other rights and remedies available to the aggrieved party at law or in equity, the aggrieved party shall be entitled to seek the necessary relief from a competent South African Court having jurisdiction to hear the matter.

[Chipkins Puratos (Pty) Ltd]

C Van Der Velden

Name:



Sign:

Marina Beach

Place:

31 January 2026

Date:



AS WITNESSES:

GARLOLOGIX (Pty) Ltd

RJ VAN SPAANDONK

Name:



Sign:

SANDTON

Place:

31 JAN 2026

Date:



AS WITNESSES: